

24STCV30945 24STCV30945

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV30945 Hearing Date: August 27, 2026 Dept: 729

Superior Court
of California

County of Los
Angeles

DEPARTMENT 729

TENTATIVE
RULING

KHALID LATEEF
WARREN,

vs.

GENERAL MOTORS,
LLC.

Case No.:
24STCV30945

Hearing Date: August 27, 2026

Plaintiff

Khalid Lateef Warren' motion for

attorneys' fees, costs, and expenses is granted in the total reduced amount of \$32,090.50. Costs will be addressed in the motion to tax costs.

Plaintiff Khalid Lateef Warren ("Plaintiff")

moves for an order awarding attorneys' fees, costs, and expenses in the amount of \$43,427.34 against Defendant

General Motors, LLC ("GM" or "Defendant"), consisting of (1) \$32,235.50 in attorneys' fees; (2) a multiplier of .3 for an additional \$9,670.65; and (3) \$1,521.19 in costs and expenses. (Notice of Motion, pg. ii, and Conclusion, pg. 15; Civ. Code §1794(d).)

Background

This is a lemon law action

brought under the Song-Beverly Consumer Warranty Act ("SBA"). On February 4, 2026, Plaintiff filed a Notice of Settlement of Entire Case, and Defendant agreed to pay attorney fees, costs and expenses. (Decl. of Acosta ¶ 32.)

On May 14, 2026, Plaintiff filed this motion for attorneys' fees. On August 14, 2026, Defendant filed its opposition. On August 20, 2026, Plaintiff filed a reply.

Discussion

Under Song-Beverly, a buyer who prevails in their action is entitled to an award "as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code §1794(d).)

Here, Plaintiff argues he is the prevailing party as Defendant agreed to settle to repurchase Plaintiffs' vehicle in the amount of \$100,000. Defendant does not dispute this point. For the purposes of this motion, Plaintiff is therefore the prevailing party.

Reasonable

Fees

To calculate

a lodestar amount, the Court must first determine the reasonableness of the

hourly rates sought by the Plaintiff's counsel. The Supreme Court of California has concluded that a reasonable hourly lodestar rate is the prevailing rate for private attorneys "conducting non-contingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133, emphasis added.)

Plaintiff's

Counsel seeks the following hourly rates in this matter (1) Anthony Greco (\$595.00/hour);

(2) Christopher Urner (\$525.00/hour); (3) Jorge L. Acosta (\$450/hour); (3)

Timan Khoubian (\$375/hour); (4) Brandon Zenevitch (\$350/hour); (5) Daniel F.

Alvarado (paralegal - \$250/hour); Susana Babiryan (paralegal - \$250/hour); Mary

Zazueta (paralegal - \$250). (See Decl. of Acosta

¶¶ 9-13, Exh. B.) These rates are

appropriate given the attorneys' relative experience and qualifications. (See Decl. of Acosta ¶¶ 3-4, 6, 9-15.) Plaintiff's counsel has demonstrated the

hourly rates sought here are reasonable in his community of practice in his specialized area of law, and Defendant does not dispute this.

Billed

Hours

The party

seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale

v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

Plaintiff's

fee recovery is based on the 69.4 hours spent by his attorneys litigating this case. (See Decl. of Acosta

¶ 24; Exh. A.)

Defendant

objects to Plaintiff's billed fees on the basis they are unreasonable or unnecessary. The Court will address these specific arguments in turn:

First, Defendant argues that Plaintiff's counsel

billed .9 hours on September 4, and 5, 2024 for initial communications,

preparing of attorney-client agreement, and welcome phone call and email. Defendant

argues that such entries reflect administrative overhead and business

development tasks not typically billable to one's client, and therefore not billable to GM. (Hensley v. Eckerhart (1983) 461 U.S. 424, 434.)

However, in Collins v. City of Los Angeles (2012) 205 Cal.App.4th 140, 159, the Court of Appeal reversed a trial court's wholesale exclusion of billing entries labeled "administrative," holding that the trial court erred by failing to determine what portion of mixed entries — which contained both compensable legal work (such as drafting correspondence and discovery requests) and non-compensable administrative tasks (such as filing and serving documents) — involved compensable attorney or paralegal work. The billing entry on 9/4/24 states there was a request for service records and financial documents, along with the communication regarding the client agreement. Defendant thus seeks a wholesale exclusion without arguing why the request for service records and financial documents are not compensable. Thus, the .4 billed hours will not be reduced. However, drafting the attorney-client agreement, and the welcome call and email will be excluded, as the Court agrees that these are overhead tasks. Thus, the Court deducts \$145.

Second, Defendant challenges 6.2 hours for billing entries on clerical and administrative tasks billed at staff rates. (Opposition, pg. 7:2-17.) Defendant does not provide citations to specific billing entries and refers generally to "[d]raft Plaintiff's Case Management Statement", "[r]eview file" update file, draft notice of posting jury fees, review answers and review hearing notes. (Acosta Decl., Ex. A, throughout.)" (Opposition, pg. 7:2-17.) Defendant also refers to "updating file, communicating regarding scheduling, file review, and requesting documents. (Declaration of Jorge Acosta ("Acosta Decl.") Decl., Ex. A, throughout.)" (Opposition, pg. 7:2-17.) Defendant did not meet its burden to challenge hours with particularity. "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal." (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Assn. (2008) 163 Cal.App.4th 550, 564, emphasis added.) Accordingly, Defendant's challenge to Plaintiff's hours billed on clerical and administrative tasks is denied.

Next, Defendant argues Plaintiff's counsel billed

2.3 hours and 1.9 hours were billed by paralegals in obtaining and reviewing repair and sales documents prior to the filing of the complaint. Defendant objects to billing entries on September 5, 19, 20, 24 & 30, 2024, October 4, 10, 15, 16, 18, 22, 23, 29 & 30, 2024 and November 5, 8, 11, 14 & 18, 2024. Defendant argues it should not have taken counsel this much time to obtain and review repair records. However, most of these tasks are different and counsel has not shown they were unreasonable. Defendant argues that the tasks were duplicative, performed by Urner and Acosta, and block billed. Again, Defendant has failed to specifically cite to any entries that are duplicative or block billed. Thus, the fees will not be reduced.

Next, Defendant argues that Plaintiff's counsel's

billing entry on January 28, 2025 and March 3, 2025, for 4.6 hours to analyze, annotate and prepare templated responses and verifications to Defendant's discovery requests was excessive because the documents were templates. (Opposition, pg. 8.) Defendant also argues that on August 16,

2024, counsel billed 3.2 hours to prepare templated form interrogatories, special interrogatories, request for production, request for admission, and deposition notice to Defendant and 2.8 hours to prepare templated form interrogatories, special interrogatories, request for production, request for admission and deposition notice to Dealer. (Acosta Decl., Ex. A. pp. 4-6.) (Opposition, pg. 8.) Defendant fails to offer legal support for the premise that templated work is not work that is reasonably incurred.

Accordingly, Defendant's request that Plaintiff's 10.6 hours billed should be reduced is denied.

Defendant also challenges 6.1 hours, and 1.9 hours

billed on July 8, 2025, August 18, 2025, and November 27, 2025 to review GM's discovery responses and document production, and to review Dealer's discovery responses. (Acosta Decl., Ex. A, pp. 3, 6 & 8.) Defendant argues the time is excessive considering that both Plaintiff's discovery requests and GM's responses are standardized and do not significantly differ from one case to another in similar Song-Beverly matters, thus requiring minimal edits or review. Defendant fails to offer legal support for the premise that templated work is not work that is reasonably incurred. In addition, these are about four sets of discovery, billed around .5 hours each. Further, it is reasonable that the document production would take longer to review. Each task appears to be reasonably incurred. Accordingly, these amounts will not be reduced.

Next, Defendant objects to 1.1. hours billed for “templated meet and confer correspondence” on October 10, 2025; and 12.8 hours for “templated motions to compel further responses” billed on December 16, 17, 2025, and February 2, 2026. Defendant argues it was unreasonable to bill 12.8 hours to drafted templated motions and review the opposition. Defendant argues the motions were also entirely unnecessary and could have been avoided completely through meaningful meet and confer efforts. Moreover, Defendant argues that these motions were never heard by the Court. Plaintiff provides in the reply that the case settled, so that is the reason the motions were never heard. Plaintiff argues that Plaintiff’s email regarding GM providing further responses fell on deaf ears, Plaintiff had no other choice but to have the court intervene and compel GM to provide further and adequate responses. If Defendant sought to avoid the fees for these motions, Defendant could have properly met and conferred with Plaintiff. They were not unnecessary and simply because the Court did not rule on them does not make them unreasonable or unnecessary. The Court declines to request the fees for these items.

Next, Defendant objects to 1.4 hours billed for Plaintiff’s unfiled motion to compel deposition of Defendant’s PMK on December 3, 2025. Defendant argues it was wholly unnecessary to prepare this motion as GM had already agreed to produce its PMK at a mutually agreed upon date and time to be deposed on issues relevant to this litigation. Plaintiff argues in the reply that only after months of following up with GM regarding PMK deposition dates, and without getting a proper response on days, did Plaintiff only begin to draft the Motion to Compel PMK Deposition dates. Plaintiff argues that when Plaintiff mentioned the potential of filing a Motion to Compel PMK, GM ultimately provided proper dates. The Court disagrees that the motion was unnecessary. The Court declines to reduce these fees.

Finally, Defendant argues that Plaintiff’s counsel should not get the 5 hours (\$2,621.00) that Counsel claims they spent on tasks related to the fee motion and memorandum of costs, let alone the additional 6.5 hours (\$3,412.50) Counsel “anticipates” it claims it will bill to review GM’s opposition, prepare a reply brief, and attend the hearing. (Acosta Decl. Ex. A; p. 12.) Defendant argues this time includes 0.8 hours billed by Mr. Acosta to review billing records, which is not properly billed to one’s client and thus not properly shifted to an adversary. (Hensley, 461 U.S. at 434.) Defendant contends the time requested is also facially excessive and

unreasonable considering Counsel's fee motion in this case is substantially like fee motions that Counsel filed in other Song-Beverly cases against GM. The argument that the motion is templated is unavailing. Even if the motion is a template, it still takes time to review and put everything together. Lastly, Defendant has not shown that the time spent reviewing billing records is not compensable time.

Accordingly,

Plaintiff's request for attorneys' fees is granted in the total amount of \$32,090.50.

Multiplier

Plaintiff requests a 0.3 multiplier. Given the routine work done in this case and the results obtained in this lemon law area, a multiplier is not appropriate. Any contingency risk factor is already accounted for in the hourly rates, which the Court has found to be reasonable.

Costs

Defendant has filed a separate motion to tax costs, and clarifies it will not be objecting to costs in the opposition to this motion. (See footnote 1, pg. 3)

Conclusion

Plaintiff's motion is granted in the total reduced amount of \$32,090.50. Costs will be addressed in the motion to tax costs.

Moving Party to give notice.

Dated:

August 27, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court